

TENTATIVE RULING

Case: **Peterson v. City of Red Bluff et al.**
Case No. CV-2025-1674

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

City of Red Bluff's demurrer:

Defendant City of Red Bluff's ("City of Red Bluff") demurrer to plaintiff Jeffrey Peterson's ("plaintiff") complaint is **OVERRULED AS MOOT**. (Code Civ. Proc., § 430.10, subs. (a), (e).) On December 17, 2025, this Court granted City of Red Bluff's special motion to strike plaintiff's entire complaint as to City of Red Bluff pursuant to Code of Civil Procedure section 425.16.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cody Strock's special motion to strike:

As an initial matter, the Court will exercise its discretion to consider defendant Cody Strock's ("Strock") late-filed special motion to strike. (Code Civ. Proc., § 425.16, subd. (f); *Hoang v. Tran* (2021) 60 Cal.App.5th 513, 526; *Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 684 ["[s]ection 425.16, subdivision (f). . . does not require a moving defendant to request leave of court prior to filing an untimely motion. Instead, subdivision (f) authorizes the court, in its discretion, to consider an untimely motion without restriction as to whether or when the moving defendant so requests."]; *Camy Decl.*, ¶¶ 2-3, Exh. A; *Shrout Decl.*, ¶ 2, Exh. A.)

Strock's special motion to strike is **GRANTED**. (Code Civ. Proc., § 425.16.) "Section 425.16 posits...a two-step process for determining whether an action is a SLAPP." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) "First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity." (*Ibid.*; Code Civ. Proc., § 425.16, subd. (b)(1).) "A defendant meets this burden by demonstrating that the act underlying the plaintiff's cause fits one of the categories spelled out in section 425.16, subdivision (e)." (*Navellier, supra*, 29 Cal.4th at p. 88, citation and quotation marks omitted.) "If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (*Ibid.*; Code Civ. Proc., § 425.16, subd. (b)(1).) "In this phase, the plaintiff must show both that the claim is legally sufficient and there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment." (*Ibid.*) "In making this assessment, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, and must also examine whether there are any constitutional or nonconstitutional defenses to the pleaded claims and, if so, whether there is evidence to negate any such defenses." (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 108.)

The Court finds that Strock has satisfied his burden of showing that the causes of action in plaintiff's complaint arise from protected activities. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1009; *Lee v. Fick* (2005) 135 Cal.App.4th 89, 96-97; see also *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 422-423; *Comstock v. Aber* (2012) 212 Cal.App.4th

931, 941-942; Complaint, ¶¶ 1-3, 13-27; Strock Decl., ¶¶ 2-6, Exhibit B.) As Strock has established that protected activities are alleged, “the burden shifts to the plaintiff to demonstrate there is a reasonable probability he or she will prevail on the merits at trial.” (*McGarry, supra*, 154 Cal.App.4th at p. 108.) In its moving and supporting papers, Strock asserts the official proceedings privilege as to the protected claims. (Civ. Code, § 47, subd. (b); *Laker v. Board of Trustees of California State University* (2019) 32 Cal.App.5th 745, 769-770; *Hansen v. Department of Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 154; *Slaughter v. Friedman* (1982) 32 Cal.3d 149, 156; see also *Kim v. Walker* (1989) 208 Cal.App.3d 375, 383; *Cayley v. Nunn* (1987) 190 Cal.App.3d 300, 303; *Comstock v. Aber* (2012) 212 Cal.App.4th 93, 952.) Plaintiff fails to establish in his opposition that the official proceedings privilege does not apply. Therefore, the Court finds that plaintiff failed to satisfy his burden and has not demonstrated a probability of prevailing on his claims. (*Navellier, supra*, 29 Cal.4th at p. 88; *McGarry, supra*, 154 Cal.App.4th at p. 108.)

Strock’s request for attorneys’ fees and costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 425.16, subd. (c)(1).) Strock failed to submit a separate declaration regarding the total attorneys’ fees and costs incurred in bringing this special motion to strike. (Memo. Pts. & Auths., p. 9.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cody Strock’s demurrer:

Strock’s demurrer to plaintiff’s complaint is **OVERRULED AS MOOT**. (Code Civ. Proc., § 430.10, subd. (e).) In granting Strock’s special motion to strike, the Court is striking plaintiff’s entire complaint.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Plaintiff’s motion for attorneys’ fees:

Plaintiff’s motion for attorneys’ fees is **DENIED**. (Code Civ. Proc., § 425.16, subd. (c)(1).) As the Court is granting Strock’s special motion to strike, plaintiff is not a prevailing party entitled to attorneys’ fees and costs.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources
Case No. CV2022-0479**

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff Sierra Northern Railway's motion for summary adjudication of State Defendants' implied dedication affirmative defenses is **CONTINUED** to **March 12, 2026**, at 9:00 a.m. in Department Eleven.